

[24 & 25 GEO. 5.] *Newport Corporation*
(General Powers) Act, 1934.

[Ch. lx.]



CHAPTER lx.

An Act to remove certain restrictions against the erection of buildings applicable to the Old Cemetery Newport to confer further powers upon the Newport Corporation in relation to their water and electricity undertakings and other matters to make better provision for the health local government improvement and finance of the borough and for other purposes.

A.D. 1934.

[12th July 1934.]

WHEREAS the borough of Newport (hereinafter called "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation") :

And whereas the Corporation are supplying water and electricity within and beyond the borough and it is expedient to confer further powers on the Corporation and to make further provision with respect to their water and electricity undertakings :

And whereas a certain piece of land in the borough was in or about the year one thousand eight hundred and forty-two enclosed for the purposes of a cemetery and laid out with roads and footpaths and subsequently became known as "the Old Cemetery Newport" but no part thereof was ever consecrated :

[Price 2s. 0d. Net.] A

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A.D. 1934.
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And whereas by an Order in Council dated the fifteenth day of January eighteen hundred and seventy-eight it was ordered that burials should be discontinued forthwith wholly in the Old Cemetery except in private vaults and graves which were free from water and could be opened without the exposure of remains or coffins :

And whereas by another Order in Council dated the thirtieth day of June eighteen hundred and ninety (after reciting that one of Her Majesty's Principal Secretaries of State made a representation stating that he was of opinion that the said Order in Council insofar as it affected burials in the Old Cemetery should be varied and that the directions thereafter set forth should be substituted for those contained in the said order with respect to burials in the said cemetery) it was ordered that with the exception of certain lands distinguished by a green colour on the plan deposited at the Home Office burials should be discontinued forthwith and entirely in the Old Cemetery :

And whereas no part of the lands coloured green on the said plan has ever been used for interments :

And whereas the whole of the Old Cemetery is a disused burial ground within the meaning of the Disused Burial Grounds Act 1884 as amended by the Open Spaces Act 1887 :

And whereas some part of the Old Cemetery is now vested in the Corporation as an open space and is or may be also subject to the provisions of section 52 of the Newport (Monmouthshire) Improvement Act 1876 of the Open Spaces Act 1906 and of certain byelaws made by the Corporation with regard to pleasure grounds and is now known as " the Clifton Road open space " :

And whereas it is expedient that (subject to the provisions of this Act) building should be permitted to take place on the site of the Old Cemetery and that the Old Cemetery should cease to be subject to section 52 of the Newport (Monmouthshire) Improvement Act 1876 the Disused Burial Grounds Act 1884 the Open Spaces Act 1887 the Open Spaces Act 1906 and the byelaws made by the Corporation with regard to pleasure grounds :

And whereas it is expedient to extend in various respects the powers of the Corporation and to confer further powers on them and to make further provision

with respect to the health local government improvement and finance of the borough : A.D. 1934.
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And whereas it is expedient that the other provisions of this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans showing the lands required or which may be taken under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been duly deposited with the town clerk of the borough and are in this Act referred to as the deposited plans and book of reference :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

Additional mains and service pipes and other purposes in connection with the supply of water by the Corpora- tion - - - - - -	£30,000
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And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Newport Cor- Short title.
poration (General Powers) Act 1934.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Water.

Division of
Act into
Parts.

A.D. 1934.

Part III.—Electricity.

Part IV.—Old Cemetery.

Part V.—Lands.

Part VI.—Streets buildings sewers and drains.

Part VII.—Infectious disease and sanitary provisions.

Part VIII.—Human food.

Part IX.—Superannuation &c.

Part X.—Finance.

Part XI.—Miscellaneous.

Incorporation of Acts.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exceptions and modifications :—

(a) Sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Public Health Acts shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ The borough ” means the borough of Newport;

“ The Corporation ” means the mayor aldermen and burgesses of the borough;

“ The town clerk ” “ the treasurer ” “ the surveyor ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the town clerk the treasurer the surveyor the medical officer of health and any sanitary inspector of the borough;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough; A.D. 1934.
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“The Act of 1876” means the Newport (Monmouthshire) Improvement Act 1876;

“The Act of 1888” means the Newport (Monmouthshire) Corporation Water Act 1888;

“The Act of 1889” means the Newport (Monmouthshire) Corporation Act 1889;

“The Act of 1897” “the Act of 1900” “the Act of 1902” “the Act of 1906” “the Act of 1914” “the Act of 1920” and “the Act of 1925” respectively mean the Newport Corporation Acts of those respective years;

“The No. 1 Act of 1930” and “the No. 2 Act of 1930” respectively mean the Newport Corporation (No. 1) Act 1930 and the Newport Corporation (No. 2) Act 1930;

“The scheme of 1931” means the Newport Corporation Scheme 1931;

“The Act of 1922” means the Local Government and other Officers’ Superannuation Act 1922;

“The Act of 1933” means the Local Government Act 1933;

“The Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending that Act;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“The Minister” means the Minister of Health;

“The Old Cemetery” means the pieces of land containing an area of two and two-thirds acres or thereabouts situate in the borough and bounded on the east by Cemetery Lane on the north by the gardens of the houses in Jones Street on the west by Clifton Place and on the south by Clifton Road;

“The electricity limits” means the limits within which for the time being the Corporation are or shall be authorised to supply electricity;

A.D. 1934.

“The tribunal” means the arbitrator to whom any question of disputed purchase money or compensation under this Act is referred;

“Food” has the meaning assigned to it by section 34 (Definitions) of the Food and Drugs (Adulteration) Act 1928;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Security of the Corporation” means any mortgage bond debenture annuity stock or other security granted issued or created by the Corporation and includes Newport (Monmouthshire) Corporation Water debenture stock;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation.

PART II.

A.D. 1934.

WATER.

5.—(1) The power of making byelaws conferred by section 58 (Byelaws preventing waste &c. of water) of the Act of 1888 shall extend to enable the Corporation to make byelaws as to the testing and stamping of valves and other apparatus and prescribing the charge to be made for such testing and stamping.

Extension
of powers
for
preventing
waste &c.
of water.

(2) Nothing in subsection (1) of this section or any byelaws made thereunder shall apply to any valves and other apparatus or pipes or fittings used on any premises (not being or being used as an hotel shop or dwelling-house) which form part of the railway of the Great Western Railway Company so long as such valves pipes and fittings do not cause waste undue consumption misuse or contamination of water which is supplied by the Corporation.

(3) Any person who shall forge or counterfeit any stamp or mark used by the Corporation or by the authority of the Corporation for any of the purposes of this section or who shall use or supply anything marked with any such stamp or mark knowing the same to be forged or counterfeited shall for every such offence be liable to a penalty not exceeding twenty pounds.

6.—(1) If in the opinion of the Corporation any waste or risk of waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain it shall be lawful for the Corporation to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been ascertained the expense incurred by the Corporation for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier.

Power to
Corporation
to repair
communi-
cation pipes.

A.D. 1934.

(2) Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

(3) Section 33 of the Act of 1920 is hereby repealed.

PART III.

ELECTRICITY.

Use of
electricity
for purposes
other than
those for
which
supplied.

7.—(1) Where the charges made by the Corporation for electricity supplied by them for one purpose are less than the charges made by them for electricity supplied for another purpose electricity supplied by the Corporation for the first-mentioned purpose shall not without the consent in writing of the Corporation be used (whether after transformation or conversion or not) for the last-mentioned purpose and if any person to whom any electricity is supplied uses it or suffers it to be used in contravention of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a further penalty not exceeding forty shillings for every day on which the offence is committed after conviction.

(2) Where a person is convicted of an offence under this section in respect of the use of electricity for any purpose the court may direct that all or any portion of the electricity which has been supplied to him by the Corporation within one year previous to the date when the proceedings were instituted at a rate of charge lower than the rate of charge appropriate for electricity supplied for the said purpose shall be charged for at the last mentioned rate.

(3) For the purposes of this section electricity shall not be deemed to be used for lighting purposes by reason only that it is used for the purposes of some electrical apparatus which contains a lamp if the purposes of the apparatus as a whole are not lighting purposes.

As to
recovery
summarily
of sums
due for
fittings.

8.—(1) If the Corporation commence proceedings for the summary recovery of a sum due for the supply of electricity any other payment due to the Corporation for the sale hire connection repair or maintenance of meters and electric fittings may be included in the same

summons and may be recovered summarily provided the amount due or payable in respect thereof does not exceed twenty pounds. A.D. 1934.

(2) In this section the expression "electric fittings" has the same meaning as in section 48 of the Electricity (Supply) Act 1926.

9. Where the electricity limits are bounded by or abut on any street wholly or for part of its width outside those limits the Corporation may for the purpose of supplying electricity to the owner or occupier of any premises within the electricity limits exercise with respect to the whole width of the street the like powers of breaking up the street for the purpose of laying maintaining inspecting repairing and renewing electric lines and works as are exerciseable by them with respect to streets within the electricity limits and subject to the like conditions Provided that nothing in this section shall entitle or require the Corporation to supply electricity to the owner or occupier of any premises outside the electricity limits. As to streets forming boundary of electricity limits.

10. If any question shall arise under section 23 (Stand-by supplies of electricity) of the Electricity (Supply) Act 1922 as to whether a supply of electricity is demanded or received for the purpose of a stand-by supply only or as to whether a supply of electricity or of gas steam or other form of energy is in use or ready for use for the purposes for which a stand-by supply of electricity is required the same shall in default of agreement be determined by arbitration. For determining stand-by supplies.

11.—(1) The Corporation may by agreement (but not otherwise) acquire from any local authority company or person who is or shall be authorised by Act of Parliament or by Provisional Order confirmed by Parliament or by Special Order to supply electricity in an area adjoining the electricity limits (in this section called "authorised undertakers") the undertaking authorised by such Act or Order or any part or parts thereof and the powers rights authorities and privileges of the authorised undertakers in relation to the undertaking or part or parts thereof so acquired and the authorised undertakers may with the approval of the Electricity Commissioners by deed to be approved by the commissioners transfer Transfer of undertakings by agreement to Corporation.

A.D. 1934. — their undertaking or part or parts thereof together with such powers rights authorities and privileges as aforesaid to the Corporation subject to such exceptions and modifications (if any) and upon such terms as may be specified in the deed.

(2) In the event of the Corporation acquiring the undertaking of any authorised undertakers or any part or parts thereof under this section the Corporation shall subject to such exceptions or modifications (if any) as aforesaid and subject to the duties and obligations of such authorised undertakers in respect thereof be deemed to be the undertakers for all the purposes of the Act or Order in relation to the undertaking or part or parts thereof so acquired.

(3) The powers conferred by this section shall not be exercised by the Corporation in respect of any undertaking or part of an undertaking situate in an area not for the time being included within the borough and being within the area of supply of the South Wales Electric Power Company except with the previous consent in writing of that company.

(4) Nothing in this section shall prejudice or affect any right or power of the Corporation to acquire the undertaking of any authorised undertakers or any part or parts thereof under section 2 of the Electric Lighting Act 1888 or under any other Act or Order.

Compensa-
tion for
deprivation
of employ-
ment.

12. The provisions of section 16 of the Electricity (Supply) Act 1919 as modified and set forth in the Fourth Schedule to the Electricity (Supply) Act 1926 shall extend and apply to any officer or servant of any local authority company or person (not being a director of such company) affected by the acquisition of or closing (permanent or temporary) or restriction in the working or use of a generating station or by the acquisition of a main transmission line or any part thereof under or in consequence of any agreement entered into by the Corporation under the powers conferred on them by the section of this Act of which the marginal note is "Transfer of undertakings by agreement to Corporation" as if such acquisition closing or restriction were an acquisition or a closing of or a restriction on the working or use of a generating station under or in consequence of the said Act of 1926.

PART IV.

A.D. 1934.

OLD CEMETERY.

13. The Corporation may within two years after the passing of this Act but subject to the provisions in that behalf hereinafter contained remove or cause to be removed from the Old Cemetery the human remains interred therein and the monuments tombstones and other memorials of deceased persons now in or about the same.

Power to
move
human
remains.

14.—(1) Before proceeding to remove any human remains from the Old Cemetery the Corporation shall publish a notice for three successive days in two local newspapers circulating in the borough to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (2) (3) (4) (5) and (6) of this section.

Provisions
as to
removal of
human
remains.

(2) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the Old Cemetery may give notice in writing to the Corporation of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to and reinterred in a burial ground or cemetery in which burials may legally take place.

(3) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the county court having jurisdiction in the borough and that court shall have power to make an order specifying who shall remove the remains.

(4) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of fifteen pounds) shall be defrayed by the Corporation such sum to be apportioned if necessary equally according to the number of remains in the grave.

(5) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Corporation in respect of the remains in any grave or if

A.D. 1934. after such notice has been given the person giving the same or (as the case may be) the person specified in any order of the county court under subsection (3) of this section shall fail within two months from the date of the notice or of the order to remove the remains to which the notice or the order relates the Corporation may remove those remains and cause them to be re-interred in a burial ground or cemetery in which burials may legally take place and which the Corporation think suitable for the purpose.

(6) All monuments tombstones and other memorials relating to the remains of any deceased person removed under this Part of this Act shall at the expense of the Corporation be removed and re-erected at the place of re-interment of such remains or at such place as the said county court may direct on the application (if any) of such heir executor administrator or relative as afore-said or failing such application on the application of the Corporation and the Corporation shall cause to be made a record of such monuments tombstones and other memorials and of their situation when re-erected showing the particulars respecting each monument tombstone or memorial as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(7) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer.

Power to
use lands
for building
and other
purposes.

15.—(1) Notwithstanding the provisions of section 52 of the Act of 1876 the Disused Burial Grounds Act 1884 the Open Spaces Act 1887 or the Open Spaces Act 1906 or of any byelaws made by the Corporation with regard to pleasure grounds the Old Cemetery shall not nor shall any part thereof be deemed to be a disused burial ground an open space or a pleasure ground within the meaning of the said section of the Act of 1876 the said Acts of 1884 1887 and 1906 and the said byelaws and nothing therein contained shall be construed to prohibit the erection of buildings upon the site of the Old Cemetery or in any way to restrict the manner in which that site can be used disposed of or dealt with.

(2) Subsection (1) of this section in its application to the portion of the Old Cemetery in which human remains are interred shall not have effect unless and until those remains have been removed as hereinbefore provided : A.D. 1934.

Provided that a Secretary of State on the application of the Corporation and on being satisfied that such removal is not necessary or desirable may dispense therewith to such extent and on such conditions (if any) as he thinks fit and subsection (1) of this section shall to the extent that a Secretary of State shall dispense with such removal have effect as though such removal had actually taken place.

PART V.

LANDS.

16. The Corporation may enter upon take appropriate and use for the purpose of the construction of swimming and other baths with all necessary conveniences and appliances all or any of the lands in the borough shown on the deposited plans and described in the deposited book of reference in relation thereto. Power to acquire lands.

17. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the borough for the correction thereof and if it appears to the justices that the omission or misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the town clerk and shall be kept by him with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the lands in accordance with the certificate. Correction of errors in deposited plans and book of reference.

A.D. 1934.

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Compensa-
tion in case
of recently
acquired
interest.

18. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November nineteen hundred and thirty-three if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Extinction
of private
rights of
way.

19.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Application
of sections
of Acts of
1902 and
1914 to
lands.

20.—(1) The following provisions of the Act of 1902 and of the Act of 1914 shall so far as applicable and subject to any necessary modifications extend and apply to and with respect to any lands authorised to be acquired under this Act and to the Corporation in respect thereof in as full and complete a manner as if those sections were re-enacted in this Act with reference thereto :—

The Act of 1902—

Section 24 (Power to take easements &c. by agreement);

Section 28 (Power to retain sell &c. lands);

Section 29 (Proceeds of sale of surplus lands).

The Act of 1914—

Section 21 (Owners may be required to sell parts only of certain properties);

Section 25 (Power to Corporation to enter upon property for survey and valuation):

Provided that for the purpose of this Act section 21 of the Act of 1914 shall be deemed to refer to properties whereof the whole or part is described in the First Schedule to this Act. A.D. 1934.
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(2) In the exercise of the powers of section 28 of the Act of 1902 as applied to this Act the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any lands or interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(3) In the exercise of the powers of section 28 of the Act of 1902 as applied to this Act the Corporation shall not make or impose any term condition or restriction with respect to the form of light heat power or energy to be used in any house shop office warehouse or other building or on any lands or with respect to the taking from any particular local authority company body or person of any form of light heat power or energy.

PART VI.

STREETS BUILDINGS SEWERS AND DRAINS.

21.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated and reasonably fly-proof larder or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Food storage accommodation.

(2) (a) Every dwelling-house the erection of which was commenced but not completed before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated and reasonably fly-proof larder or other food storage accommodation and every existing dwelling-house shall where reasonably practicable be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided

A.D. 1934. but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

Power to
order
alteration
of chimneys.

22.—(1) A court of summary jurisdiction upon complaint by the Corporation upon a report by the medical officer or the sanitary inspector that any smoke gas or vapour or any soot from any chimney of a wash-house or outbuilding forming part of or in proximity to a dwelling-house is a nuisance to any of the inhabitants of the borough may make an order requiring the owner of such chimney to cause the same to be raised or a funnel or pipe to be placed thereon for conveying away such smoke gas or vapour or such other means to be adopted as may seem fitting to the court for preventing or mitigating such nuisance within such time as shall be specified in such order where the cost of complying with such requirement does not exceed twenty pounds.

(2) Any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

As to
defective
drains &c.

23.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain watercloset or soil-pipe is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if the work necessary to remedy such defect is not commenced within twenty-four hours from the service of such notice and completed as speedily as the circumstances of the case will admit the Corporation may carry out the work and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier.

A.D. 1934.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

24.—(1) If the Corporation shall by resolution determine that any banner streamer notice board sign or lettering (all of which are in this section included in the expression "sign-board") suspended across any street or hung over any part of a street for the purposes of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the street across or over which or any part of which it is suspended or hung they may by notice in writing require the owner of or person responsible for the suspension or hanging of such sign-board to remove it within such period not being less than seven days as may be specified in the notice.

Banners
signs &c.
over streets.

(2) If any sign-board shall after the passing of this Act be suspended across the carriageway of any street repairable by the inhabitants at large without the permission of the Corporation the owner or person responsible for such suspension shall be liable to a penalty not exceeding twenty shillings and shall forthwith (upon receiving notice in writing from the Corporation requiring him so to do) remove the sign-board.

(3) Any person who neglects or refuses to comply with the requirement of any such notice and any person who shall have removed any such sign-board as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or hang the same or any similar sign-board without the permission in writing of the Corporation or without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings and the Corporation

A.D. 1934. — may themselves remove any such sign-board and any expense incurred by them in so doing may be recovered by them from such person.

(4) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such sign-board as is referred to in subsection (1) hereof which was in use on the twenty-fifth day of November nineteen hundred and thirty-three.

(5) Any person aggrieved by any requirement of any notice of the Corporation or the withholding of permission by the Corporation or the conditions attached to any such permission under the provisions of this section may appeal to a court of summary jurisdiction within seven days after the service of such notice or the intimation to him of such withholding or of the attaching of such conditions provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk. Notice of the right to appeal shall be endorsed on every notice or intimation of the Corporation under this section.

(6) Section 31 of the No. 2 Act of 1930 is hereby repealed.

PART VII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Cleansing
of dwelling-
houses in
certain
cases.

25. When the medical officer certifies in writing that any dwelling-house is in an insanitary condition and that the occupier thereof is unable through disease infirmity or mental incapacity to remedy such condition and that his health is thereby endangered a court of summary jurisdiction may on the application of the Corporation (who shall give to the occupier seven days' notice of their intention to make such application) make an order for the removal of such occupier to an institution or other dwelling for such period as the court may by such order direct as being necessary to enable the Corporation to cleanse and disinfect the dwelling-house and the Corporation may carry out the removal and such cleansing and disinfection of the dwelling-house as may be necessary.

26.—(1) If the medical officer shall certify in writing that any person in the borough—

- (a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

- (b) is suffering from any grave chronic disease;

A.D. 1934.

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Removal of
infirm and
diseased
persons in
certain
cases.

and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention and that thorough inquiry and consideration have shown the necessity in the interests of the health of such person and for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing the medical officer may make application to a court of summary jurisdiction and the court upon oral proof of the allegations in the certificate and subject to examination of such person by a registered medical practitioner to be nominated by them (if they think fit) may make an order for the removal of such person to a suitable hospital infirmary or other institution or other suitable place provided within the borough or within a convenient distance of the borough and for the detention and maintenance of such person therein for such period (not exceeding three months) as may be determined by the order or such further period or periods (each not exceeding three months) as may be determined by any further order or orders made under and in accordance with the provisions of this section :

Provided that not less than three clear days before making any application under this subsection for the removal of any person to an institution or place not provided by the Corporation the medical officer shall give to the council of the county or borough or district to whom the institution or place belongs (in this section referred to as "the appropriate authority") notice in writing of his intention so to do.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this section or to some person being in charge of such person three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

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(3) The cost of the removal of any person to a hospital infirmary or other institution or place as aforesaid and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which a person is so detained the Corporation may and if so required by the court shall make towards the maintenance of any dependants of that person such contributions as the Corporation think fit or as may be directed by the court :

Provided that if the application asks for the removal of the person to an institution or place not provided by the Corporation the appropriate authority shall be entitled to appear and be heard on the application and any matters relating thereto and may in the exercise of their powers under any scheme made under Part I of the Local Government Act 1929 assume such obligations with regard to the maintenance of the said person and his dependants as may be agreed between the appropriate authority and the Corporation.

(4) An order under this section may be addressed to such officer of the Corporation as the court making the order may think expedient and any person who wilfully disobeys or obstructs the execution of the order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and the court may make a rescission order accordingly if having regard to the circumstances they are of opinion that it is right and proper that such rescission order should be made.

Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) Nothing in this section or in any order made thereunder shall authorise the removal of any person to or the detention of any person in any institution not provided by the Corporation except with the consent in writing of the appropriate authority or shall affect or

interfere with the exercise or discharge by the appropriate authority of any of their powers or duties. A.D. 1934.

(7) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the Corporation so to do either generally or in any particular case in which those powers are proposed to be exercised and no order shall be made under the provisions of this section for the removal of any person to any voluntary hospital or charitable institution without the consent in writing of the controlling body thereof.

27.—(1) It shall not be lawful for any person (other than a person appointed by the Corporation for the purpose of emptying dustbins or other receptacles for refuse) to sort over or disturb the contents of any such receptacle when placed in any street or in any forecourt adjoining any street for the purpose of the removal of such contents by the Corporation. Prohibiting sorting of contents of dustbins and refuse tips.

(2) It shall not be lawful for any person (other than a person employed or authorised by the Corporation in connection with any refuse tip used by the Corporation for the disposal of refuse) to sort over or disturb the refuse at any such refuse tip.

(3) Any person acting in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds.

PART VIII.

HUMAN FOOD.

28.—(1) Section 72 of the Public Health Act 1925 in its application to the borough shall (except in relation to subsection (3) and paragraph (e) of subsection (2) of that section) be read and have effect as if the words “the Factory and Workshop Act 1901 as amended by any subsequent enactment or” were omitted from subsection (1) of that section. Extension of section 72 of Public Health Act 1925.

(2) The said section as so amended shall in its application to the borough be read and have effect as if the following provision were added after subsection (2) thereof (that is to say):—

“The occupier of any room to which this section applies and which is used for the preparation of

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food for sale or (except in the case of food contained in receptacles so closed as to exclude all risk of contamination) for the sale of food shall cause to be provided in connection with the room—

(a) a satisfactory water supply; and

(b) suitable washing-up sinks with a sufficient supply of hot water together with an adequate supply of soap and towels for the use for toilet purposes of persons employed therein.”

Hawking
of meat
game fish
&c.

29.—(1) Where the Corporation by resolution determine that the provisions of this section shall apply in the borough and such resolution has been advertised at least once in each of three successive weeks in a newspaper circulating in the borough the following provisions shall have effect therein :—

(a) No person other than a person keeping open shop for the sale of meat or meat food products shall by himself or by any person authorised or employed by him sell or offer or expose for sale any meat or meat food product from any cart or other vehicle or from any basket or barrow unless he holds a certificate from the Corporation approving of the accommodation used by him for the storage of the meat or meat food products;

(b) (i) A certificate of approval of storage accommodation shall not be withheld unless the Corporation are satisfied that the storage accommodation is having regard to the interests of public health unsatisfactory for the purpose of storing meat or meat food products;

(ii) A certificate of approval shall have effect only as respects the person to whom such certificate has been granted;

(c) (i) Every certificate of approval shall subject as hereinafter provided be for a stated period not exceeding one year and such fee not exceeding two shillings and sixpence may be charged therefor as the Corporation may determine;

(ii) The Corporation may at any time during the period for which such certificate of approval

is granted withdraw the certificate if they are satisfied that in the interests of public health it should be withdrawn provided that they shall first have given the person from whom the certificate is proposed to be withdrawn an opportunity of being heard and on any such withdrawal or upon the use of the premises in respect of which the certificate of approval has been granted being discontinued the certificate shall subject as hereinafter provided cease to have effect and shall forthwith be returned to the Corporation;

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- (d) Any person from whom a certificate of approval has been withheld or withdrawn may within seven days from the date on which such withholding or withdrawal has been intimated to him appeal to a court of summary jurisdiction against such withholding or withdrawal and the decision of such court shall be final Where such court decides that such certificate of approval should not have been withheld or shall not be withdrawn the Corporation shall comply with the decision of such court Pending the final determination in any appeal with respect to the withdrawal of a certificate of approval the certificate shall continue to have effect ;
- (e) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any storage accommodation in the borough in respect of which an application has been received for a certificate of approval or in respect of which such a certificate is in operation and also any premises which he shall have reason to believe are being used as storage accommodation for meat or meat food products intended for sale from a cart or other vehicle or from a basket or barrow ;
- (f) Every person in charge of a cart or other vehicle or of a basket or barrow from which meat or any meat food product is being sold or offered or exposed for sale shall on demand produce to the medical officer the sanitary inspector or any

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other officer of the Corporation appointed for the purpose or to any officer of police the certificate of approval of the appropriate storage accommodation or a copy thereof certified by or on behalf of the Corporation for which copy the Corporation shall be entitled to charge a fee not exceeding one shilling;

(g) The Corporation shall keep a register of storage accommodation in respect of which certificates of approval are granted under this section and of the persons to whom such certificates are granted.

(2) In and for the purposes of this section—

“Meat” means the flesh of cattle swine sheep or goats including bacon and ham and edible offal and fat which is sold or intended for human consumption;

“Meat food product” means any article of food intended for sale for human consumption and derived or prepared in whole or in part from meat.

(3) The provisions of this section shall extend and apply to game (as defined in section 2 of the Game Act 1831) rabbits and fish in like manner as they apply to meat.

(4) Any person offending against the provisions of paragraph (a) or paragraph (f) of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and (in the case of an offence against the provisions of the said paragraph (a)) to a daily penalty not exceeding twenty shillings.

(5) This section shall not apply to any person who proves that he has no storage accommodation situate within the borough.

Further powers in relation to unsound food.

30. Sections 116 to 118 of the Public Health Act 1875 (as amended by section 28 of the Public Health Acts Amendment Act 1890) shall extend to authorise the medical officer or sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any animal or any of the articles referred to in the said sections

intended for sale or in the course of delivery after sale for food and the provisions of such sections shall apply accordingly : A.D. 1934.

Provided that in the exercise at any railway station or upon any railway premises of a railway company of the powers conferred upon them by this section such medical officer or sanitary inspector shall conform to such reasonable requirements of the railway company owning or using such station or premises as are necessary to prevent the working of their traffic being obstructed or interfered with and with respect to any cart or other vehicle belonging to the said company the power conferred upon the medical officer or the sanitary inspector by this section shall be so exercised as not unreasonably to obstruct or interfere with the collection of goods of the said company.

31.—(1) Where it is shown that any animal or article liable to be seized under section 116 of the Public Health Act 1875 (as extended by section 28 of the Public Health Acts Amendment Act 1890) and found in the possession of any person was sold to him by another person for food (the proof that the same was not sold for food resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the last-mentioned section unless he proves that at the time he sold the animal or article he did not know and had no reason to believe that it was in such condition. Penalty on original vendor of unsound food.

(2) Where any animal or article of food has been condemned by a justice under section 117 of the Public Health Act 1875 (as extended by section 28 of the Public Health Acts Amendment Act 1890 and this section) the person to whom the same belongs or did belong at the time of deposit of such animal or article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in section 117 of the Public Health Act 1875 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said animal or article was in such a condition as to be liable to be so condemned.

(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act

A.D. 1934. — 1875 (as extended by section 28 of the Public Health Acts Amendment Act 1890 and this section) is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable in respect of such animal or article to prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such animal or article.

Repeal of
sections 134 and
135 of Act of
1889.

32. Sections 134 and 135 of the Act of 1889 are hereby repealed.

Registration
of premises
used for
preparation
of potted
and
preserved
foods.

33.—(1) Any premises within the borough used or proposed to be used for the preparation or manufacture of sausages or potted pressed pickled or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier or intending occupier thereof with the Corporation.

(2) Any person using for any of the purposes mentioned in subsection (1) of this section any premises in the borough not registered for that purpose pursuant to this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) If the Corporation are satisfied that any premises registered or sought to be registered with them pursuant to this section are unsuitable for the purpose for which they are registered or sought to be registered they may serve upon—

(a) the person on whose application the premises were registered or the occupier of the premises;
or

(b) the person applying for such registration;

(as the case may be) a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice remove the premises from the

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register or refuse to register the premises (as the case may be) and if he fails to show cause to their satisfaction accordingly they may remove the premises from the register or refuse to register the premises (as the case may be).

(4) Any person aggrieved by any decision of the Corporation under subsection (3) of this section may within fourteen days from the date of such decision appeal to a court of summary jurisdiction provided that he gives or causes to be given written notice of such appeal and of the grounds thereof to the Corporation before lodging his appeal. The court may on any such appeal by order either confirm the decision of the Corporation or require the Corporation to retain the premises on the register or to register the premises (as the case may be) and the costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(5) The decision of the Corporation to remove any premises from the register or to refuse to register any premises shall not have effect until the expiration of the time prescribed by subsection (4) of this section for appeal to a court of summary jurisdiction nor where any such appeal is brought until the appeal is either abandoned or determined and where notice of appeal from a court of summary jurisdiction is duly given according to the provisions of the Summary Jurisdiction Acts such decision of the Corporation as aforesaid shall not take effect until the appeal to quarter sessions is either abandoned or determined.

(6) The provisions of this section shall have no application to any premises occupied as a factory or workshop respecting which notice is required by subsection (1) of section 127 of the Factory and Workshop Act 1901 to be given and shall not in any way affect the operation of that Act.

(7) In the case of meat or fish the word "preserved" in subsection (1) of this section includes preparation by any process of cooking but this section shall not apply to hotels restaurants or other premises where food is in the ordinary course of business prepared for consumption on the premises.

.D. 1934,
Registration
of ice-cream
manu-
facturers
and
premises.

34.—(1)—

- (a) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity; and
- (b) any premises used or proposed to be used for the manufacture or sale of ice-cream or other similar commodity;

shall be registered with the Corporation in the case of any such person by himself and in the case of any such premises by the owner or occupier thereof.

(2) No person shall carry on the business of a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity unless he be so registered and no premises shall be used for the purposes aforesaid unless they be so registered.

(3) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) This section shall not apply to any premises used as a club hotel or restaurant.

(b) This section in its application to any premises used as a theatre music hall or cinematograph theatre shall be read and have effect as if paragraph (a) of subsection (1) thereof were restricted to manufacturers for the purpose of sale of ice-cream or other similar commodity and as if the purposes mentioned in paragraph (b) of that subsection were restricted to the manufacture for the purpose of sale of ice-cream or other similar commodity.

Power to
refuse
registration
of or re-
move from
register
ice-cream
manu-
facturers
and
premises.

35.—(1) The Corporation may if they are satisfied that the public health is or is likely to be endangered by any act or default of any person who is registered or who seeks to be registered as a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity in relation to the quality storage or distribution of the ice-cream or other commodity serve upon him a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register him or remove him from the register as the case may be either absolutely or in respect of any specified premises and if he fail to show cause to their satisfaction accordingly they may refuse

to register him or may remove him from the register as the case may be. A.D. 1934.

(2) Any person aggrieved by any such decision of the Corporation as aforesaid may within twenty-one days give notice of appeal to a court of summary jurisdiction and that court may by order require the Corporation to register such person or not to remove him from the register.

(3) The decision of the Corporation to refuse registration or to remove any person from the register under this section shall not have effect until the expiration of the time for appeal to a court of summary jurisdiction nor where any such appeal is brought until the appeal is determined and where notice of appeal from a court of summary jurisdiction is duly given according to the provisions of the Summary Jurisdiction Acts such decision of the Corporation as aforesaid shall not take effect until the appeal to quarter sessions is either abandoned or determined.

(4) Where the appeal is from a refusal to register such person as aforesaid may until the appeal is finally determined carry on business as a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity notwithstanding that he is not registered.

36. Section 67 of the Act of 1925 shall have effect as if the following subsection were inserted at the end thereof :—

Amendment
of section 67
of Act of
1925.

“(5) The medical officer and the sanitary inspector or other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter and inspect any premises on which he suspects that there is any contravention of a byelaw made under this section and any person refusing such entry or inspection or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.”

PART IX.

SUPERANNUATION &C.

37. Words and expressions to which meanings are assigned by the Act of 1922 have in and for the purposes of this Part of this Act the same respective meanings

Meaning of
expressions
in Part IX
of Act.

A.D. 1934. — unless there is something in the subject or context repugnant to such construction.

Reduction or
suspension
of salary
or wages.

38.—(1) In the event of the salary or wages of an officer or servant being either—

- (a) reduced in consequence of a reduction of the duties which he has to perform and not on the ground of misconduct; or
- (b) reduced on account of his mental or physical infirmity; or
- (c) reduced or suspended by reason of illness;

he may if he so desires with the consent of the Corporation either—

- (i) continue to contribute to the superannuation fund in all respects as if such reduction or suspension had not taken place; or
- (ii) pay into the superannuation fund forthwith on such reduction or suspension ceasing to have effect or on his resignation or on his otherwise ceasing to hold his office or employment whichever shall first occur (in this section referred to as “the material date”) or by such instalments as may be agreed between him and the Corporation a sum equal to the difference between the amount (if any) which he has contributed thereto during the period of such reduction or suspension and the amount which he would have contributed thereto if such reduction or suspension had not taken place together with compound interest on that sum calculated at the rate of four per centum per annum with half-yearly rests.

(2) In the event of any sum payable by an officer or servant under paragraph (ii) of subsection (1) of this section being agreed to be paid by instalments the first instalment shall be not less than one-tenth of the total sum payable and shall be payable within one year from the material date and the whole of the instalments shall be payable within a period not exceeding ten years from that date with compound interest on the amount for the time being unpaid calculated at the rate of four per centum per annum with half-yearly rests as from the material date.

(3) In the event of an officer or servant making such payment or continuing to contribute as aforesaid— A.D. 1934.
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(a) in the former case the amount of his salary or wages shall for the purposes of the Act of 1922 be deemed to be the amount of the salary or wages which he would have received; and

(b) in the latter case the amount of his salary or wages for the period in respect of which he so continues to contribute shall for the purposes of the Act of 1922 be deemed to be the amount of the salary or wages which he would have received in respect of that period;

if such reduction or suspension had not taken place.

(4) For the purpose of calculating the amount which may be or is required to be paid by way of return of contributions to or in respect of an officer or servant under section 9 (Forfeiture for fraud &c.) section 10 (Return of contributions with interest in certain cases) section 11 (Return of contributions without interest in certain cases) and section 12 (Return of contributions in case of death) of the Act of 1922 the whole of the sum paid by him under this section (or if the amount is payable by instalments under subsection (2) of this section the amount of the instalments paid by the officer or servant to the date of the determination of the appointment or his death as the case may be) shall be treated as contributions which have been paid by him to the superannuation fund of the Corporation.

(5) If any instalment of the sum payable by an officer or servant under this section remains to be paid at the date on which the officer or servant becomes entitled to a superannuation allowance the amount of each such instalment shall with accrued interest thereon be deducted from the payment or payments of superannuation allowance made next after the instalment has become due until the whole sum payable has been recovered.

39. Notwithstanding anything contained in the Act of 1922 the Corporation shall not be required to make any payment by way of superannuation allowance under that Act to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such times as they may from time to time require of the continued existence of such person.

As to proof
of continued
existence of
pensioners.

A.D. 1934.

Annuities
for widows.

40.—(1) Within one month before any date on which if he ceased to hold his office or employment an officer or servant would become entitled to a superannuation allowance under paragraph (b) or paragraph (c) of subsection (1) of section 6 of the Act of 1922 he may give notice in writing to the treasurer requiring that the provisions of subsection (2) or subsection (3) of this section shall apply to him and to any wife to whom he is married on the date on which he becomes entitled to a superannuation allowance or (if he dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance) to any wife to whom he is married at the date of his death and where any such notice is given then unless the Corporation (being of opinion that the state of health of such person regard being had to his age is not reasonably satisfactory) notify him within one month after the receipt by the treasurer of the notice that they do not intend to comply with the requirement subsection (2) or subsection (3) of this section as the case may be shall apply and the other provisions of this section shall have effect :

Provided that a notice under this subsection may be given in respect either of the whole or of a specified part of an allowance and where it is given in respect of a specified part only of an allowance references in this section to the superannuation allowance shall be construed as references to such specified part of the superannuation allowance.

(2) In any case to which this subsection applies—

(a) the amount of the superannuation allowance payable to an officer or servant during the joint lives of himself and such wife as aforesaid shall be reduced by six per centum and if she is younger than he is it shall also be reduced by an amount equal to the amount by which the annuity payable to her if she survives him will be diminished under the proviso to paragraph (b) of this subsection ;

(b) if he predeceases her and—

(i) was in receipt of or entitled to a superannuation allowance ; or

(ii) dies before ceasing to hold office or employment but would had he so ceased

immediately prior to his death have been A.D. 1934.
entitled to a superannuation allowance; —

she shall be entitled after his death to receive for life an annuity equal to one-third of the amount of the superannuation allowance which was or would have been payable to him reduced by six per centum as aforesaid :

Provided that if her age was less than his such annuity shall be subject to a diminution calculated under the provisions of paragraph (d) of this subsection ;

- (c) if she predeceases him then as from the date of her death or his retirement whichever occurs last the superannuation allowance payable to him shall be reduced by twenty-eight seventy-fifths ; and
 - (d) the diminution referred to in the proviso to paragraph (b) of this subsection shall where the officer or servant at the time of giving the said notice was within one month of attaining the age of sixty-five and the case falls within the table set out in Part I of the Second Schedule to this Act be calculated in accordance with that table and in any other case it shall be of such an amount as shall be certified by an actuary to be just.
- (3) In any case to which this subsection applies—
- (a) the amount of the superannuation allowance payable to the officer or servant shall be reduced by eleven per centum and if such wife as aforesaid is younger than he is it shall also be reduced where the case falls within the table set out in Part II of the Second Schedule to this Act by an amount calculated in accordance with that table and in any other case by such an amount as shall be certified by an actuary to be just ;
 - (b) if he predeceases her and—
 - (i) was in receipt of or entitled to a superannuation allowance ; or
 - (ii) dies before ceasing to hold office or employment but would had he so ceased

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immediately prior to his death have been entitled to a superannuation allowance;

she shall be entitled after his death to receive for life an annuity equal to one-third of the amount of the superannuation allowance which was or would have been payable to him calculated as if it had not been reduced as aforesaid.

(4) The first payment of any superannuation allowance to a person under this section shall be accompanied by a statement showing the amount of any annuity which may become payable under this section.

(5) An annuity under this section shall be payable out of the superannuation fund. Provided that if the superannuation allowance of the officer or servant was by reason of the proviso to subsection (1) of section 16 of the Act of 1922 not payable wholly out of the superannuation fund such proportion only of the annuity shall be paid out of the superannuation fund as corresponds to the portion of the said superannuation allowance which was so payable and the balance shall be paid out of the general rate fund.

(6) In any case in which an annuity becomes payable under this section—

(i) the Corporation shall not be required to make any payment to the legal personal representative of the deceased officer or servant under the provisions of section 12 of the Act of 1922;

(ii) on the cesser of the annuity by reason of the death of the recipient the Corporation shall pay to her legal personal representative such sum if any as shall be equal to the amount by which the aggregate amount of the contributions of the officer or servant under the Act of 1922 together with compound interest thereon calculated to the date of his death or the date of his retirement whichever first occurred at the rate of three per centum per annum with half-yearly rests exceeds the aggregate of the amounts which he received by way

of superannuation allowance under the Act of 1922 whether as originally enacted or as amended by this Act and she received by way of annuity under this section. A.D. 1934.
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(7) An annuity under this section shall not be capable of assignment or transfer.

41.—(1) Subject to the provisions of this section the expressions “officer” and “servant” where used in the Act of 1922 in its application within the borough shall include the clerk to the justices of the borough and any person employed by such clerk in connection with his duties as such clerk. Provided that— Extension of Act of 1922 to clerk to justices and others.

- (a) the said expressions “officer” and “servant” shall not include any person to whom notice is given under subsection (3) of this section and who shall within one month after the date of giving such notice intimate in writing to the Corporation that he does not desire that the provisions of this section shall apply to him;
- (b) the provisions of this section shall not come into operation except with the consent of the said justices and of the Secretary of State and if such consents be given shall operate from the thirty-first day of December nineteen hundred and thirty-four;
- (c) a resolution of consent of the said justices under the foregoing proviso (b) shall only be effective if passed by the said justices or a majority of them assembled at special sessions summoned for that purpose;
- (d) the provisions of this section shall not apply to any person holding the office of clerk to the justices of the borough unless he is in the whole time service of the said justices as such clerk or to any person employed by such clerk unless he is in the whole time employment of such clerk in connection with his duties as such clerk.

(2) The Secretary of State may by order make such modifications in the Act of 1922 in its application within the borough as appear to him to be necessary or expedient for the purposes of this section.

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(3) The Corporation shall within two months after the passing of this Act give notice in writing of the provisions of this section to the clerk to the said justices who is the holder of that office at the time of the passing of this Act and to all persons who at that time are in the whole time employment of the said clerk in connection with his duties as such clerk.

Payment of
pension &c.
of person of
unsound
mind.

42.—(1) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 as amended by any enactment the Corporation may pay the whole of that sum or so much thereof as they think fit to the institution or person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus if any thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

(2) This section applies to any sum payable by the Corporation to an employee or former employee or pensioner of the Corporation or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund being either a lump sum not exceeding one hundred pounds or an instalment of a periodical payment not exceeding one hundred pounds per annum.

(3) Not less than fourteen days before exercising for the first time in relation to a person detained as aforesaid their power under subsection (1) of this section the Corporation shall give to the master in lunacy notice in writing of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Corporation intend to exercise the said power.

(4) If at any time the master in lunacy gives to the Corporation notice in writing that he objects to the exercise by the Corporation of the said power in relation to any person the said power shall as from the date of the receipt by the Corporation of the notice cease to be exerciseable by the Corporation in relation to that person unless and until the master withdraws the notice.

(5) The Corporation shall be discharged from all liability in respect of— A.D. 1934.

- (a) Any payment or application of money effected by them in exercise of the said power; and
- (b) Any payment or application of money effected by them before the passing of this Act which might have been effected by them in exercise of the said power if the provisions of subsections (1) and (2) of this section had been in force at the date of the payment or application and had applied to sums of any amount.

43.—(1) On the death of an employee to whom a sum not exceeding one hundred pounds is due on account of salary wages superannuation allowance grant or repayment of contributions to any superannuation or other fund with or without interest if probate of the will of the employee or letters of administration of his estate are not produced within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation shall pay the sum to the person or persons entitled in distribution to the residuary estate of the employee in accordance with the provisions of paragraphs (i) to (v) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 and in default of any such person to the Solicitor for the Affairs of His Majesty's Treasury :

As to
payments
due to
deceased
employees.

Provided that—

- (a) the Corporation may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Corporation shall deem it reasonable to allow ;
- (b) if the Corporation receive notice of any claim of a creditor of the deceased employee before the expiration of one month from the death of the employee they shall retain the whole amount due to the deceased employee in their hands or a sufficient sum thereof to satisfy the claim (whichever amount shall be the less) until the claim has been satisfied disproved or withdrawn.

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(2) The Corporation before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require—

(a) where the total estate of the deceased employee including the amount of such moneys does not after deduction of debts and funeral expenses exceed one hundred pounds a declaration to that effect by the person or one of the persons to or among whom the Corporation propose to pay or distribute such moneys; and

(b) where the total estate of the deceased employee including the amount of such moneys but after deduction of debts and funeral expenses exceeds one hundred pounds the production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and of a duly stamped receipt for the legacy or succession duty payable in respect of such moneys or of a certificate stating that no legacy or succession duty is payable.

PART X.

FINANCE.

Power to borrow.

44.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such periods as they may determine not exceeding those respectively mentioned in the third column of the said table:—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) Additional mains and service pipes and other purposes in connection with the supply of water by the Corporation.	£30,000	Thirty-five years from the date or dates of borrowing.
(b) The purchase of lands under the powers of this Act.	The sum requisite.	Sixty years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of obtaining this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

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45. The powers conferred upon the Corporation by the Acts mentioned in the first column of the following table to borrow for the purposes mentioned in the second column the sums mentioned in the third column are hereby reduced by the amounts mentioned in the fourth column (namely):—

Reduction
of certain
borrowing
powers.

1	2	3	4
Act authorising the borrowing.	Purpose for which borrowing was authorised.	Amount authorised to be borrowed.	Amount by which borrowing powers are to be reduced.
The Act of 1876	Free library and adjoining lands	£ 5,500	£ 1,000
	New streets and street improvements	43,000	11,332
The Act of 1889	The roads authorised by that Act to be made (including the contributions or sums payable by the Corporation under that Act or under the agreement set forth in the Fifth Schedule to that Act and contributions towards the expenses of the construction of such roads payable under any other agreements entered into or to be entered into under section 60 of that Act).	15,500	500
Newport Corporation Act 1892.	The tramways by that Act authorised	25,000	13,000
The Act of 1902	The tramways undertaking of the Corporation.	110,000	2,270
The Act of 1914	The construction of the tramways by that Act authorised.	7,250	7,250
	The construction of the street works as therein defined.	1,000	1,000
	The purchase of lands for the street works.	21,766	3,020
The Act of 1925	The construction of street works and works connected therewith.	19,850	10,736
	The purchase of lands for recreation grounds.	5,200	400
The No. 1 Act of 1930.	The purchase of lands for and in connection with the street works as therein defined.	49,000	2,000
	The construction of street works and works connected therewith.	51,940	7,053

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Application
of Act of
1933 to
existing
sinking
funds.

46.—(1) Sections 213 and 214 of the Act of 1933 shall (subject to the provisions of any scheme made under section 71 (Consolidated loans fund) of the No. 1 Act of 1930) apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking fund as may be proper.

(2) Sections 88 and 90 of the Act of 1925 are hereby repealed.

Application
of Act of
1933 to
moneys
borrowed
by issue of
bonds.

47. Where the Corporation after the passing of this Act raise money by the issue of Corporation bonds under the provisions of section 68 of the No. 1 Act of 1930 sections 212 213 and 214 of the Act of 1933 shall (subject to the provisions of any scheme made under section 71 (Consolidated loans fund) of the No. 1 Act of 1930) apply as if the money had been raised by borrowing by mortgage under that Act and bonds were mortgages within the meaning of that Act.

Receipts
and
expenses.

48.—(1) Notwithstanding anything contained in any enactment all moneys received by the Corporation whether on capital or revenue account including (a) all moneys received on account of the revenue of any undertaking of the Corporation as from time to time existing from which revenue is derived and (b) interest and other annual proceeds from time to time received on the investments forming part of any fund accumulated for the redemption of debt or as a reserve renewals depreciation contingency insurance consolidated loans lands capital reserve or other similar fund shall be carried to and form part of the general rate fund and all payments and expenses made and incurred by the Corporation in respect of any such undertaking or in carrying into execution the powers and provisions of this or any other Act and not otherwise provided for shall be paid out of the general rate fund or the general rate :

Provided that (subject in the case of any of the said funds to any prescribed limit on the amount thereof) there shall be credited in the accounts to the fund on the investments forming part of which any interest and other

annual proceeds as aforesaid is received an amount A.D. 1934.
equivalent—

- (a) in the case of any fund not being a fund established for the redemption of debt to the interest and other annual proceeds as aforesaid; and
- (b) in the case of any fund established for the redemption of debt to interest on the amount which should from time to time be standing to the credit of the fund at the rate per centum per annum on which the annual payments to the fund are based.

(2) Nothing in this section shall authorise the Corporation to apply capital money to any purpose other than a purpose to which capital money is properly applicable.

49. If in any year the moneys received by the Corporation on account of the revenue of any undertaking of the Corporation as from time to time existing from which revenue is derived exceed the moneys paid or expended by the Corporation in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) (d) and (e) of subsection (1) of the section of this Act of which the marginal note is "Accounts of undertakings" the Corporation may in respect of that year (if they think fit) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

Application
of revenues
of under-
takings.

- (a) In reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) In the construction renewal extension or improvement of any works and conveniences for the purposes of the undertaking subject in the case of the electricity undertaking to the consent of the Electricity Commissioners.

50.—(1) The Corporation shall notwithstanding the provisions of any enactment to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation as from time to time existing from which revenue is derived (each of which is in this section separately referred to as "the undertaking") on the one side

Accounts of
under-
takings.

A.D. 1934. — all receipts in respect of the undertaking including the income from any reserve fund authorised in connection with such undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

- (a) the working and establishment expenses and cost of maintenance of the undertaking;
- (b) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain;
- (f) any money expended on any of the purposes mentioned in the section of this Act of which the marginal note is “Application of revenues of undertakings.”

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Reserve
funds.

51.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the undertakings of the Corporation as from time to time existing from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used under the provisions of section 91 (Use of moneys forming part of sinking and other funds) of the Act of 1925 or subsection

(4) of section 71 (Consolidated loans fund) of the No. 1 Act of 1930) investing the same in statutory securities until the fund so formed amounts in the case of the electricity undertaking to a sum equal to one-tenth of the aggregate capital expenditure of the Corporation on that undertaking and in the case of the other undertakings to the maximum reserve fund for the time being prescribed by the Corporation in respect of each such undertaking not exceeding in the case of the water undertaking a sum equal to one-tenth or in the case of the markets undertaking a sum equal to one-fifth of the aggregate capital expenditure of the Corporation on those undertakings respectively. A.D. 1934.
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(2) Any reserve fund which has been formed in respect of any undertaking of the Corporation as from time to time existing from which revenue is derived and which is in existence at the passing of this Act shall be carried to and form part of any reserve fund provided under subsection (1) of this section in respect of such undertaking.

(3) Any reserve fund formed under this section may be applied to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners) for payment of the cost of renewing improving or extending any works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to any such reserve fund although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

52.—(1) The following provisions shall apply with respect to the electricity undertaking as from time to time existing (in addition to the provisions of the section of this Act of which the marginal note is “Application of revenues of undertakings”) (viz.) :— Provisions as to surplus electricity revenue.

If in any year the accounts of the electricity undertaking kept under the section of this Act of

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which the marginal note is “Accounts of undertakings” shall show that the revenue of the electricity undertaking in respect of that year (including if and so long as any reserve fund provided in connection with the electricity undertaking amounts to a sum equal to one-tenth of the aggregate capital expenditure of the Corporation on that undertaking the interest and other annual proceeds received by the Corporation in respect of that year on the investments forming part of that reserve fund) shall exceed the total amount of the payments and expenses in respect of the year for the several purposes mentioned in paragraphs (a) to (f) of subsection (1) of the last-mentioned section then—

(a) if the reserve fund in respect of the electricity undertaking does not amount to more than one-twentieth of the aggregate capital expenditure of the Corporation on that undertaking a sum equal to the amount of such excess shall be deemed for the purposes of the section of this Act of which the marginal note is “Accounts of undertakings” to be revenue of the electricity undertaking in respect of the next following year and a reduction shall be made in the charges for electricity supplied by the Corporation of such respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the said excess;

(b) if the said reserve fund amounts to more than one-twentieth of the said aggregate capital expenditure such amount as the Corporation may think fit (not being less in any case in which the said excess is more than a sum equal to one and a half per centum of the outstanding debt of the electricity undertaking than the difference between the said excess and that sum) shall be deemed for the purposes of the section of this Act the marginal note of which is “Accounts of undertakings” to be revenue of the electricity undertaking in respect of the next following year and a reduction shall be made in the charges for

electricity supplied by the Corporation of such respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the amount so deemed to be revenue. A.D. 1934.

(2) Subsection (1) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be deemed to be excluded from incorporation with the Newport (Mon.) Electricity Orders 1891 to 1931.

53.—(1) The sections of this Act of which the marginal notes are “Receipts and expenses” “Application of revenues of undertakings” “Accounts of undertakings” “Reserve funds” and “Provisions as to surplus electricity revenue” shall be deemed to have come into operation on the first day of April nineteen hundred and thirty-four. Date of operation of certain sections and repeal.

(2) The following enactments shall be deemed to have been repealed as from the said date:—

The Act of 1876—

Section 73 (Costs of execution of Act).

The Act of 1897—

Section 68 (Expenses relating to ferries).

The Act of 1900—

Section 65 (As to expenses of Corporation in exercise of powers of commissioners of sewers);

Section 66 (Separate accounts to be kept);

Section 67 (Audit of accounts).

The Act of 1906—

Section 21 (As to expenses) so far as the same relates to the charging of expenses upon any fund and rate;

Section 62 (Expenses incurred by Corporation).

The Act of 1914—

So much of section 60 (Incorporation of general sections of Act of 1906) as relates to section 62 of the Act of 1906.

The Act of 1920—

Section 66 (All expenses of Corporation to be paid out of borough rate);

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So much of section 76 (Incorporation of general sections of Acts of 1906 and 1914) as relates to section 62 of the Act of 1906.

The Act of 1925—

Section 110 (Separate accounts in respect of trading undertakings);

Section 111 (Separate accounts to show proper financial position);

Section 112 (Apportionment of receipts and payments between separate accounts);

Section 121 (Expenses incurred by Corporation).

The No. 1 Act of 1930—

Section 72 (Application of revenue and payment of expenses of undertakings);

Section 73 (Reserve funds of certain undertakings);

Section 74 (As to revenue and reserve fund of electricity undertaking);

So much of section 84 (Incorporation of general sections of Acts of 1906 1914 and 1925) as relates to the Act of 1925.

The No. 2 Act of 1930—

So much of section 52 (Incorporation of general sections of Acts of 1906 1914 and 1925) as relates to the Act of 1925.

The scheme of 1931—

So much of section 26 (Incorporation of general sections of Acts of 1906 and 1914) as relates to the Act of 1925.

Lands fund.

54. The Corporation may if they think fit establish a fund to be called "the lands fund" which shall form part of the general rate fund to provide for purchasing or acquiring or taking on lease and holding any lands and buildings which in their opinion it is desirable at any time to acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the

Corporation may from time to time determine not exceeding the amount which would be produced by a rate of twopence in the pound calculated in manner provided by rules from time to time made by the Minister under the Rating and Valuation Act 1925 Provided that when the fund aforesaid shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual appropriations but if the fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual appropriations until the fund be restored to the sum of ten thousand pounds.

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55.—(1) The Corporation may if they think fit in any year apply from the general rate fund or from the proceeds of the general rate to a fund to be called the “renewal and repairs fund” (a) any sum not exceeding an amount equal to twelve and one-half per centum of the cost incurred by the Corporation (otherwise than for the purposes of the undertakings of the Corporation from which revenue is derived) in connection with the provision of horses carts mechanically propelled vehicles stables depots boilers and equipment and apparatus in connection therewith as shown in the accounts at the thirty-first day of March in any such year and (b) any sum not exceeding the average annual cost incurred by the Corporation during the previous three years in connection with the maintenance and repair of buildings.

Renewal
and repairs
fund.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed ten thousand pounds.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for the maintenance and renewal of the appliances works equipment and buildings referred to in subsection (1) of this section which are not comprised in the undertakings of the Corporation from which revenue is derived and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

56.—(1) The Corporation may establish a fund to be called “the capital reserve fund” for the purpose of defraying any expenditure to which capital is properly applicable (other than expenditure in connection with

Capital
reserve
fund.

A.D. 1934. — the undertakings of the Corporation) to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating such sums out of the general rate fund (other than moneys derived from the above-mentioned undertakings) as the Corporation from time to time deem expedient:

Provided that—

- (a) any sum so appropriated to the capital reserve fund from the general rate fund shall not exceed in any year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to section 9 of the Rating and Valuation Act 1925;
- (b) appropriations to and payments into the capital reserve fund shall cease to be made whenever the said fund amounts to the sum of twenty-five thousand pounds.

(2) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall be either invested in statutory securities or used in the manner provided by section 91 (Use of moneys forming part of sinking and other funds) of the Act of 1925 or subsection (4) of section 71 (Consolidated loans fund) of the No. 1 Act of 1930.

Closing
of registers.

57.—(1) The Corporation or the registrar with the approval of the Corporation as regards stock may close the register of transfers of any class of securities of the Corporation (including the books in which transfers of any security of the Corporation which is transferable in books are entered) for a period not exceeding one month immediately preceding each date on which any interest or dividend on the class of securities to which such register relates is payable.

(2) Any transfer of any security of the Corporation made during the time when the register of transfers relating to such security is so closed shall as between the Corporation and the person claiming under the same but not otherwise be considered as made immediately after the payment of any such interest or dividend as the case may be.

(3) Section 179 of the Act of 1889 is hereby repealed.

58.—(1) The Corporation or the registrar in the case of stock may give notice to any person being registered as a holder of any security of the Corporation that they intend or he intends to send interest or dividends to that person by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation or to the registrar as the case may require of such objection the Corporation or the registrar may from time to time send letters containing orders for the payment of interest or dividend warrants to the address of such person appearing in the register. Provided that if such person gives notice to the Corporation or the registrar (as the case may require) that he desires such orders or warrants to be sent to any person at a given address the Corporation or the registrar may from time to time send letters containing the same to such other person at such address.

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Dividend
warrants
by post.

(2) Where more persons than one are registered as joint holders of any security of the Corporation any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Corporation or to the registrar in the case of stock by any other of them.

(3) The posting by the Corporation or the registrar of a letter containing an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation or the registrar be equivalent to the delivery of the order or warrant to the registered holder of the security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation and the registrar shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

59.—(1) Subsection (2) of section 71 of the No. 1 Act of 1930 shall have effect and shall be deemed always to have had effect as if the words “including the accumulations arising from the investments thereof” were omitted.

Amendment
of section 71
of No. 1
Act of 1930.

(2) Paragraph (b) of subsection (4) of the said section 71 shall have effect and shall be deemed always to have had effect as if the words “paid to the lending fund” were substituted for the words “paid out of the lending fund.”

A.D. 1934.
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Amendment
of Third
Schedule
of No. 1
Act of 1930.

60. Subparagraph (1) of paragraph 10 of the Third Schedule to the No. 1 Act of 1930 shall have effect and shall be deemed always to have had effect as if for the words “ the section of Part IX of the foregoing Act “ of which the marginal note is ‘ Evidence of transfer or “ transmission of securities ’ ” there were substituted the words “ section 40 of the Newport Corporation (No. 2) Act 1930.”

As to
recovery of
rates from
tenants and
lodgers.

61. For the purposes of section 15 (Recovery of rates from tenants and lodgers) of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

PART XI.

MISCELLANEOUS.

As to
railway in
Courtybella
Terrace.

62.—(1) If and when the existing railway running from the Tredegar Wharf private line adjoining the Great Western Railway in a westerly direction along Courtybella Terrace and into the yard near Price Street known as Adams Yard shall be removed and a substituted railway provided in lieu thereof from the Great Western Railway near Price Street aforesaid and across Courtybella Terrace the Corporation may if they think fit erect and thereafter maintain or permit the erection and maintenance of gates across Courtybella Terrace adjacent to the point at which the substituted railway crosses Courtybella Terrace and from time to time while the substituted railway is in use close the portion of Courtybella Terrace between the gates or permit the same to be closed to traffic of all descriptions.

(2) Nothing contained in or done under this section shall be deemed to amount to or be evidence of an adoption by the Corporation of Courtybella Terrace nor impose upon the Corporation any liability whatever in respect thereof nor prejudice or affect the powers of the Corporation with regard to private street works under any public general or local Act in their application to Courtybella Terrace.

63. Any agreement entered into between the Corporation and the parent or guardian of a pupil at any central secondary or technical school belonging to the Corporation may make provision for the payment by such parent or guardian to the Corporation of any sum not exceeding ten pounds in the event of the pupil ceasing without reasonable cause to attend any such school prior to the date fixed by such agreement for the pupil to cease attendance at such school and the Corporation shall be entitled without proof of any actual damage incurred by reason of such pupil ceasing to attend any such school as aforesaid to recover summarily as a civil debt from such parent or guardian any sum not exceeding the sum specified in the agreement as the court may think fit to award in all the circumstances of the case.

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As to school agreements.

64. The following provisions of the Act of 1906 and the Act of 1914 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if they were re-enacted in this Act with any necessary modifications:—

Incorporation of general sections of Acts of 1906 and 1914.

The Act of 1906—

Section 54 (Damages and charges to be settled by justices);

Section 56 (Recovery of penalties);

Section 57 (Compensation &c. how to be determined);

Section 58 (Saving for indictment);

Section 59 (Judges &c. not disqualified);

Section 61 (Powers of Act cumulative).

The Act of 1914—

Section 68 (Recovery of demands).

65. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Breach of conditions of consent of Corporation.

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Consents of Corporation to be in writing.

66. All consents given by the Corporation under the provisions of this Act or of any local Act order bye-law or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

In executing works in default of owner or occupier no liability for damages to be incurred except in case of negligence.

67. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Power of entry.

68. The provisions of sections 102 and 103 of the Public Health Act 1875 shall extend and apply to the purposes of the provisions of Part VI (Streets buildings sewers and drains) Part VII (Infectious disease and sanitary provisions) and Part VIII (Human food) of this Act as if those purposes had been mentioned in the said section 102.

Penalty on occupiers refusing execution of Act.

69. If the occupier of any house or part of a house or premises shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part VI (Streets buildings sewers and drains) Part VII (Infectious disease and sanitary provisions) or Part VIII (Human food) of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the

expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. A.D. 1934.
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70. On any appeal to a court of summary jurisdiction under this Act the court may (unless other provision is made) make such order on such terms and conditions as they may think just and may award costs. Powers of court of summary jurisdiction on appeal.

71.—(1) Any person aggrieved by an order made by a court of summary jurisdiction under the provisions of this Act may appeal against the order to a court of quarter sessions and the Corporation may likewise appeal against the refusal of a court of summary jurisdiction to make any such order. As to appeals.

(2) Any person aggrieved by an order judgment determination or requirement or by the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer thereof under the provisions of Part VI (Streets buildings sewers and drains) and Part VII (Infectious disease and sanitary provisions) of this Act may (if no other mode of appeal is provided by this Act) appeal in manner provided by the Quarter Sessions Act 1849 to the next practicable court of quarter sessions held not less than thirty days after notice of the decision appealed against has been sent to him and the notice of appeal shall be given to the Corporation and to the clerk of the peace.

72. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local Act for the time being in force within the borough as if the same were re-enacted therein. Application of section 265 of Public Health Act 1875.

73. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly. Inquiries by Minister.

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Crown
rights.

74. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing in this Act contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of
Act.

75. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

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THE FIRST SCHEDULE.

PROPERTIES WHEREOF PORTIONS ONLY MAY BE TAKEN.

Number on deposited plans.	Description of property.
1	Land and outbuildings.
2	Garden ground and buildings.
3	Garden ground.
4	Garden ground.
5	Garden ground.
6	Garden ground.
7	Garden ground.
8	Garden ground and buildings.
9	Garden ground and buildings.

THE SECOND SCHEDULE.

PART I.

REDUCTION OF PROPORTION OF SUPERANNUATION
ALLOWANCE ALLOCATED TO WIFE.

Age of wife at husband's age of 65.	Rate per centum of reduction.
64	3½
63	6½
62	9¼
61	12
60	14¼
59	16½
58	18½
57	20½
56	22¼
55	24

A.D. 1934.

PART II.

REDUCTION OF SUPERANNUATION ALLOWANCE.

Difference of age between husband and wife.						Further percentage reduction from husband's superannuation allowance.	
Less than 1 year	-	-	-	-	-	1	per cent.
1 year and less than 2 years	-	-	-	-	-	2	„ „
2 years	„	„	3	„	-	3	„ „
3 „	„	„	4	„	-	$3\frac{3}{4}$	„ „
4 „	„	„	5	„	-	$4\frac{1}{2}$	„ „
5 „	„	„	6	„	-	$5\frac{1}{4}$	„ „
6 „	„	„	7	„	-	6	„ „
7 „	„	„	8	„	-	$6\frac{3}{4}$	„ „
8 „	„	„	9	„	-	$7\frac{1}{2}$	„ „
9 „	„	„	10	„	-	$8\frac{1}{4}$	„ „
10 „	„	„	11	„	-	9	„ „

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